

Smt. Urvashi Yadav vs Ku. Payal Yadav on 17 August, 2022

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FAM No. 159 of 2016

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HIGH COURT OF CHHATTISGARH, BILASPUR

FAM No. 159 of 2016

Judgment Reserved On : 27/07/2022

Judgment Delivered On : 17/08/2022

- Smt. Urvashi Yadav W/o Late Rajendra Yadav, Aged About 36 Years
R/o Village Hadha, Presently R/o Village Kharoud, P. S. Sheorinarayan,
District Janjgir Champa, Chhattisgarh

---- Appellant

Versus

- Ku. Payal Yadav D/o Late Rajendra Yadav, Aged About 14 Years
Minor Through Badi Maa, Smt. Dropati Yadav, W/o Late Rajendra
Yadav, R/o Hadha, Tahsil Pamgarh, District Janjgir Champa,
Chhattisgarh

---- Respondent

For Appellant : Shri Sumit Singh, Advocate.
For Respondent : Shri Ashok Swarnakar, Advocate.

Hon'ble Shri Goutam Bhaduri &
Hon'ble Shri Deepak Kumar Tiwari, JJ

C A V JUDGMENT

The following judgment of the Court was passed by Deepak Kumar Tiwari, J.

1. This Appeal is directed against the judgment dated 23.6.2016 passed by the Family Court, Janjgir, District Janjgir-Champa in CMJC No.9/2015 whereby the learned Family Court directed the appellant to pay a sum of Rs.2,000/- to the respondent towards monthly maintenance.

2. Facts of the case are that Rajendra Prasad was the husband of the appellant herein. Rajendra Prasad died in road accident on 21.7.2006. He was working as Shiksha Karmi Class-III in Primary

School, Barbhata. One Smt. Dropati was the second wife of the deceased. Out of their wedlock, plaintiff/respondent Ku. Payal Yadav was born. After the death of the deceased, appellant had received the amount of Provident Fund and Gratuity. The appellant also got compassionate appointment on the post of Peon. It was alleged that the appellant stopped maintaining the respondent. It was further alleged that the mother of the respondent is not able to maintain the respondent on account of her illness as also having no source of income. Therefore, the respondent through her mother filed an application under Section 22 read with Section 21 (5) of the Hindu Adoption and Maintenance Act, 1956 claiming Rs.5,000/- as monthly maintenance.

3. The appellant filed a written statement stating that the respondent and her mother Smt. Dropati Yadav have never resided with her during the lifetime of late Rajendra Prasad. It was also stated that the respondent is not the legitimate daughter of the deceased and, therefore, the respondent is not entitled for maintenance under the Hindu Adoption and Maintenance Act, 1956.

4. Learned Family Court after appreciating the law and fact has partly allowed the application and directed the appellant to pay a sum of Rs.2,000/- to the respondent towards monthly maintenance.

5. Learned counsel for the appellant would submit that the impugned order is bad in law, inasmuch as the Court below has not considered the provisions of Section 22 of the Hindu Adoption and Maintenance Act, 1956 in its proper perspective. The Court below has failed to appreciate the fact that the deceased has not left any estate by testamentary or intestate in favour of the appellant and, therefore, the appellant was not entitled to maintain the respondent. The Court below also committed an error in holding that the job secured by the appellant after the death of her husband would fall under the category of estate and also committed an error in granting maintenance to the respondent. The Court below has not appreciated the fact that the application filed by the respondent under Section 22 read with Section 21 (5) of the Hindu Adoption and Maintenance Act does not disclose any cause of action.

6. On the other hand, learned counsel for the respondent would support the impugned judgment.

7. We have heard learned counsel for the parties at length and perused the record.

8. Smt. Dropati Bai, (PW-1) mother of the respondent, would depose that the appellant is the first wife of her husband late Rajendra Yadav and from their wedlock 5 children were born and she is the second wife, and out of their relations, the respondent was born. She has also proved the mark sheet of Class-8th of the respondent (Ex.-P/1), in which the name of father of the respondent was recorded as Rajendra Kumar. Appellant Smt. Urvashi Yadav (DW-1) stated that the respondent is not the daughter of her husband. However, the said fact was not challenged in the cross-examination of mother of the respondent. So it was proved that the respondent is the daughter of deceased Rajendra Kumar. The appellant has admitted that she has received the service benefits of husband after his death, as also the amount of Provident Fund, Gratuity and also got compassionate appointment on the post of Peon and posted in Middle School, Village Kharod. She also admits in her cross- examination that she is not giving any maintenance to the plaintiff/respondent.

9. The relevant provisions of the Hindu Adoptions and Maintenance Act, 1956 are as under:-

"Section 21. Dependants defined.- For the purpose of this Chapter "dependants" mean the following relatives of the deceased :-

(i) to (viii)

(ix) his or her illegitimate daughter, so long as she remains unmarried.

Section 22. Maintenance of dependants. - (1) Subject to the provisions of sub-section (2), the heirs of a deceased Hindu are bound to maintain the dependants of the deceased out of the estate inherited by them from the deceased.

(2) Where a dependant has not obtained, by testamentary or intestate succession, any share in the estate of a Hindu dying after the commencement of this Act, the dependant shall be entitled, subject to the provisions of this Act, to maintenance from those who take the estate.

(3) The liability of each of the persons who take the estate shall be in proportion to the value of the share or part of the estate taken by him or her.

(4) Notwithstanding anything contained in sub-section (2) or sub-section (3), no person who is himself or herself a dependant shall be liable to contribute to the maintenance of others, if he or she has obtained a share or part, the value of which is, or would, if the liability to contribute were enforced, become less than what would be awarded to him or her by way of maintenance under this Act."

10. In the matter of Piyush Kumar Anchal v. State of C.G., 2022 SCC OnLine Chh 513, it was held that illegitimate son of the deceased Government servant is also entitled to be considered for compassionate appointment.

11. Further, as per the instructions issued by the General Administration Department of the Government of Chhattisgarh for appointment on compassionate ground vide letter dated 14.6.2013, the following declaration shall be given by the applicant:-

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13. Even otherwise, learned counsel for the respondent has referred to the order passed by the coordinate Bench of this Court in MAC No.316/2008 (Smt. Dropati Yadav Vs. Must. Urvashi & Others) decided on 4.10.2017 wherein it was held that since Ku. Payal was born from the relationship that the deceased had with Smt. Dropati Yadav, she would definitely be entitled for the relief of a portion of share in the award passed by the Motor Accident Claims Tribunal, Janjgir, District Janjgir Champa in Claim Case No.96/2006, decided on 26.12.2007.

15. In the case at hand, the appellant has received the amount of service benefits after death of her husband and also got compassionate appointment in which also there was pre-condition to maintain the dependants. Therefore, the learned family Court has rightly held that the appellant shall also maintain the plaintiff. While considering the number of family members and the salary received by the appellant, maintenance of Rs.2,000/- per month was granted, which seems to be proper.

17.The Appeal being devoid of any substance deserves to be and is hereby dismissed.

Sd/-
(Deepak Kumar Tiwari)
Judge

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